

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Charlie Hartford	Team: Squad #16	CCRB Case #: 201802249	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Friday, 03/23/2018 12:30 AM	Location of Incident: 238 East 106th Street	18 Mo. SOL 9/23/2019	Precinct: 23		
Date/Time CV Reported Fri, 03/23/2018 8:44 AM	CV Reported At: CCRB	How CV Reported: On-line website	Date/Time Received at CCRB Fri, 03/23/2018 8:44 AM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Daniel Rodney	02818	949555	PSA 5
2. POM Steven Kallap	16352	951859	PSA 5

Officer(s)	Allegation	Investigator Recommendation
A . POM Steven Kallap	Abuse: Police Officer Steven Kallap stopped the vehicle in which § 87(2)(b) and an individual were occupants.	A . Unsubstantiated
B . POM Daniel Rodney	Abuse: Police Officer Daniel Rodney stopped the vehicle in which § 87(2)(b) and an individual were occupants.	B . Unsubstantiated
C . POM Steven Kallap	Abuse: Police Officer Steven Kallap frisked § 87(2)(b)	C . Unsubstantiated
D . POM Daniel Rodney	Abuse: Police Officer Daniel Rodney frisked an individual.	D . Unsubstantiated
E . POM Daniel Rodney	Abuse: Police Officer Daniel Rodney searched the vehicle in which § 87(2)(b) and an individual were occupants.	E . Unsubstantiated

Case Summary

On March 23, 2018, § 87(2)(b) filed this complaint with the CCRB via email.

On March 23, 2018 at approximately 12:30 a.m. in the vicinity of 238 East 106th Street in Manhattan, § 87(2)(b) and an unidentified individual were stopped while driving a rental vehicle by Police Officer Steven Kallap and Police Officer Daniel Rodney of PSA 5 (**Allegation A and Allegation B: Abuse of Authority, unsubstantiated**). § 87(2)(b) and his passenger were frisked by PO Kallap and PO Rodney, respectively (**Allegation C and Allegation D: Abuse of Authority, unsubstantiated**). § 87(2)(b) vehicle was searched by PO Rodney (**Allegation E: Abuse of Authority, unsubstantiated**).

This case contains video evidence.

Findings and Recommendations

Allegation (A) Abuse of Authority: Police Officer Steven Kallap stopped the vehicle in which § 87(2)(b) and § 87(2)(b) were occupants.

Allegation (B) Abuse of Authority: Police Officer Daniel Rodney stopped the vehicle in which § 87(2)(b) and § 87(2)(b) were occupants.

It is undisputed that § 87(2)(b) rental vehicle was stopped by PO Kallap and PO Rodney for allegedly performing an illegal U-turn, and that no summons was issued for this alleged infraction. § 87(2)(g)

§ 87(2)(b) stated during his verified interview that at approximately 12:30 a.m. on March 23, 2018, his vehicle was stopped by plainclothes officers driving an unmarked black Chevrolet Impala in front of 238 East 106th Street in Manhattan (Board Review 01). § 87(2)(b) was driving a rented silver Chevrolet Cruze with the Connecticut license plate number § 87(2)(b) § 87(2)(b) had one passenger in his vehicle for whom he declined to provide contact or identifying information. PO Kallap and PO Rodney approached the front driver and passenger side windows of § 87(2)(b) vehicle, respectively. § 87(2)(b) asked why he had been stopped, and PO Kallap informed § 87(2)(b) that he had seen him perform an illegal U-turn. § 87(2)(b) denied during his CCRB interview having performing a U-turn prior to being pulled over. § 87(2)(g) (Board Review 02 and 03).

PO Kallap and PO Rodney both stated that they did not recall any aspect of this incident (Board Review 04 and 05). However, both officers made memo book entries § 87(2)(g) (Board Review 06 and 07). Both officers' entries state that at 12:30 a.m. on March 23, 2018, a stop was performed of a vehicle with the Connecticut license plate number "§ 87(2)(b)" for performing a U-turn on East 106th Street between Lexington Avenue and Third Avenue, and that this vehicle was pulled over on East 106th Street between Second Avenue and Third Avenue.

While the investigation was able to obtain video evidence depicting the stop addressed in this allegation, this footage does not depict the vicinity of where the vehicle infraction allegedly occurred (Board Review 08 and 09).

§ 87(2)(g)

It is therefore recommended that **Allegation A** and **Allegation B** be closed as **unsubstantiated**.

Allegation (C) Abuse of Authority Police Officer Steven Kallap frisked § 87(2)(b)

Allegation (D) Abuse of Authority: Police Officer Daniel Rodney frisked § 87(2)(b)

It is undisputed that PO Kallap instructed § 87(2)(b) and his passenger to exit their vehicle, and that PO Kallap stated that the removal was pursuant to allegedly detecting the odor of alcohol and marijuana. Video evidence depicts an officer patting down at least one individual during the interaction.

§ 87(2)(b) stated during his verified interview that upon being asked by PO Kallap to produce his license and registration, § 87(2)(b) provided his license to PO Kallap, but informed him that the vehicle was a rental and that he did not have the rental agreement (Board Review 01). PO Kallap then told § 87(2)(b) to step out of the vehicle. § 87(2)(b) asked why he was being told to exit, at which time PO Kallap stated that the vehicle smelled like alcohol and marijuana. § 87(2)(b) exited his vehicle, at which time he was patted down by PO Kallap. § 87(2)(b) also observed his passenger in the same position on the other side of the vehicle being patted down by PO Rodney at this time. PO Kallap then took § 87(2)(b) to the rear of his vehicle. § 87(2)(b) initial complaint and phone statement were consistent with his verified interview (Board Review 02 and 03).

As previously discussed, neither PO Kallap nor PO Rodney had any recollection of this incident (Board Review 04 and 05). However, PO Kallap's memo book notes that § 87(2)(b) was not in possession of the rental agreement, and that at least one occupant of the vehicle was asked to step out of the vehicle upon the detection of the odor of alcohol and marijuana (Board Review 06). PO Rodney's memo book entry § 87(2)(g) omits any mention of the odor of marijuana or alcohol, and additionally alleges that the driver of the vehicle was not in possession of a valid New York State driver license (Board Review 07).

Video evidence obtained by the investigation depicts § 87(2)(b) being frisked by an officer on the left side of § 87(2)(b) vehicle (Board Review 10). Please note that while a SnagIt clip has been placed below, it is recommended that the original footage be reviewed due to the degraded quality of the SnagIt clip. Footage depicting this portion of the incident can be viewed between 1:07 and 1:42 minutes in the footage attached to Board Review 09.



201802249_20180615_1230_DM.mp4

§ 87(2)(g)

§ 87(2)(g)

In People v. Cuffie, 109 AD3d 1200 [2013], the Supreme Court of New York, Appellate Division, Fourth Department notes that “it is well established that [t]he odor of marihuana emanating from a vehicle, when detected by an officer qualified by training and experience to recognize it, is sufficient to constitute probable cause to search a vehicle and its occupants” (Board Review 12).

In People v. Ellis, 62 NY2d 393 [1984], the Court of Appeals of New York established that failure to produce either valid identification or a rental agreement during a car stop permits officers to remove the driver from the vehicle and frisk him so that he can be arrested and taken back to the stationhouse (Board Review 13).

§ 87(2)(g)

It is therefore recommended that **Allegation C** and **Allegation D** be closed as **unsubstantiated**.

Allegation (E) Abuse of Authority: Police Officer Daniel Rodney searched the vehicle in which § 87(2)(b) and § 87(2)(b) were occupants.

§ 87(2)(b) stated in his CCRB interview that after he and his companion were frisked, PO Kallap remained at the rear of his vehicle with the civilians, while PO Rodney searched the vehicle (Board Review 01). § 87(2)(b) observed PO Rodney search under the driver, passenger, and rear passenger seats, as well as inside the vehicle’s glove compartment for approximately three minutes without recovering any contraband. § 87(2)(b) initial complaint and phone statement were consistent with his verified interview (Board Review 02 and 03).

Video footage also appears to depict an officer breaking the threshold of § 87(2)(b) vehicle (Board Review 11). As discussed previously, it is recommended that the original footage be reviewed at Board Review 09 between 2:45 and 3:24 minutes.



201802249_20180615_1231_DM.mp4

In People v. Cuffie, 109 AD3d 1200 [2013], the Supreme Court of New York, Appellate Division, Fourth Department notes that “it is well established that [t]he odor of marihuana emanating from a vehicle, when detected by an officer qualified by training and experience to recognize it, is sufficient to constitute probable cause' to search a vehicle and its occupants” (Board Review 12).

§ 87(2)(g)

it is recommended that this **Allegation E** be closed as **unsubstantiated**.

Civilian and Officer CCRB Histories

- This is § 87(2)(b) second CCRB complaint (Board Review 17). § 87(2)(b)
- PO Kallap has previously been the subject of four allegations in three cases, none of which were substantiated. Two of these allegations were for vehicle stops.
- PO Rodney has previously been the subject of four prior allegations in one prior case. This case is still currently under investigation.

Mediation, Civil and Criminal Histories

- § 87(2)(b) rejected mediation at the conclusion of his CCRB interview.
- A FOIL request submitted on June 18, 2018 determined that § 87(2)(b) has not filed a notice of claim pertaining to this incident (Board Review 22).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Squad No.: _____

Investigator: _____
Signature Print Title & Name Date

Squad Leader: _____
Signature Print Title & Name Date

Reviewer: _____
Signature Print Title & Name Date